FILED IN CLERK'S OFFICE
U.S.D.C. - Atlanta
AUG 28 2025
KEVIN P. WEIMER, Clerk
By: Deputy Clerk

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF GEORGIA
ATLANTA DIVISION

MICHAEL E. SULLIVAN, JR.,
Plaintiff,
v.
W. MICHAEL MALOOF, JR.,
d/b/a THE MALOOF LAW FIRM,
Defendant.

Civil Action No.:
1:25-cv-02006-JPB

PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT

Pursuant to Federal Rule of Civil Procedure 15(a)(2), Plaintiff Michael E. Sullivan, Jr., proceeding *pro se*, respectfully moves this Court for leave to file the attached First Amended Complaint for Damages ("First Amended Complaint"). In support thereof, Plaintiff shows the Court as follows:

INTRODUCTION

To facilitate the productive, merits-focused mediation scheduled for October 30, 2025 [Doc. 24], Plaintiff seeks leave under Rule 15(a)(2) to file a First Amended Complaint that: (1) clarifies factual allegations; (2) streamlines the causes of action; (3) addresses the issues raised in Defendant's pending Motion to Strike [Doc. 5]; and (4) supplies the exhibits that Defendant claimed were "not contained" in the original Complaint—an omission on which Defendant relied to refuse to admit or deny roughly 36% (60 of 167) of the paragraphs in his Answer [Doc. 4].

The amendment will sharpen the issues for the parties and the mediator, promote judicial economy, and advance resolution on the merits. This is precisely what Rule 15's "freely given" standard is designed to facilitate, especially with mediation imminent.

PROCEDURAL HISTORY

Defendant filed an Answer on June 16, 2025 [Doc. 4]—one day before personal service was perfected [Doc. 7]—and a Motion to Strike the next day [Doc. 5]. A Joint Preliminary Report and Discovery Plan ("JPRDP") was filed on July 29, 2025 [Doc. 20]. On July 31, 2025, the Court entered a Scheduling Order staying discovery pending mediation [Doc. 22] and referred the case to mediation [Doc. 23]. In a later order, the Court set mediation for October 30, 2025 [Doc. 24].

LEGAL STANDARD

Under Federal Rule of Civil Procedure 15(a)(2), a court should "freely give leave [to amend] when justice so requires," and leave should be denied only for a substantial reason such as undue delay, bad faith, undue prejudice, or futility. *Foman v. Davis*, 371 U.S. 178, 182 (1962) (listing undue delay, bad faith, undue prejudice, and futility as grounds for denial).

ARGUMENT

I. The Motion Is Timely

Local Rule Appendix B, Form II § 6(b) provides: "Amendments to the pleadings submitted later than thirty (30) days after the Joint Preliminary Report and Discovery Plan is filed, or should have been filed, will not be accepted for filing, unless otherwise permitted by law." Here, the Joint Preliminary Report and Discovery Plan ("JPRDP") was filed on July 29, 2025 [Doc. 20]. Thirty days later was August 28, 2025, the exact date this Motion was filed. Accordingly, the Motion is timely under the Local Rule.

Alternatively, even if the "should have been filed" prong were deemed controlling, leave should still be granted. On July 31, 2025, the Court stayed discovery [Doc. 22] and referred the case to mediation [Doc. 23]. In a later order, the Magistrate Judge set mediation for October 30, 2025 [Doc. 24]. The amendment adds no new parties or claims, streamlines the pleadings, and addresses the issues raised in Defendant's pending Motion to Strike [Doc. 5]. Defendant himself asked to respond "14 days after" the October 30 mediation, underscoring the absence of prejudice. These circumstances establish good cause under Rule 16(b)(4) and fully support leave under Rule 15(a)(2).

II. The Motion Is Not Filed for Any Improper Purpose

Plaintiff files this motion promptly after the Court scheduled the October 30 mediation [Doc. 24] to promote an efficient, merits-focused ADR session and

ensure the mediator has a complete, clarified record. Moreover, the contemplated amendment was identified in the Joint Preliminary Report and Discovery Plan [Doc. 20], giving Defendant advance notice and further eliminating any claim of surprise or prejudice.

III. The Amendment Will Not Prejudice Defendant

Prejudice typically arises when amendment follows the close of discovery or requires the opponent to redo completed work. *Campbell v. Emory Clinic*, 166 F.3d 1157, 1162 (11th Cir. 1999). Discovery is stayed by order [Doc. 22]. The amendment adds no new parties and does not materially expand the case; it clarifies factual allegations and streamlines existing claims arising from the same conduct, which relate back under Rule 15(c)(1)(B). No duplication of effort is required. Indeed, the only condition defense counsel placed on consent was a deadline to respond to the amended pleading "14 days after" the October 30 mediation. That proposed post-mediation response deadline conflicts with the District's ADR goals of 'savings in time and costs' (LR 16.7(A)) and underscores the absence of any cognizable prejudice. Defendant's request for a post-mediation response date confirms that his objection is strategic delay, not prejudice.

IV. The Amendment Is Not Futile

Amendment is futile only if "the complaint, as amended, would still be subject to dismissal." *Cockrell v. Sparks*, 510 F.3d 1307, 1310 (11th Cir. 2007).

The proposed complaint is not futile because it directly cures the alleged defects raised in Defendant's pending Motion to Strike [Doc. 5]. The amendment clarifies the factual bases for each claim and addresses Defendant's evidentiary objections by pleading the challenged communications for permissible purposes expressly allowed by Federal Rule of Evidence 408(b). Because the amendment resolves the central issue raised in the Motion to Strike, it would readily survive a renewed motion to dismiss on those grounds and is therefore not futile.

CONFERENCE OF COUNSEL CERTIFICATION

Pursuant to Local Rule 7.1, Plaintiff certifies that he conferred with Defendant's counsel, Chadwick L. Williams, via email on August 12 and 13, 2025, in a good-faith effort to secure consent for this motion. Plaintiff offered to stipulate to extending Defendant's response deadline to thirty (30) days from the date the amended complaint is filed, in exchange for consent.

On August 13, 2025, Mr. Williams countered that Defendant would consent only if Plaintiff agreed to extend the response deadline until "14 days after the conclusion of mediation." With mediation set for October 30, 2025 [Doc. 24], this would delay Defendant's responsive pleading until 14 days after the October 30 mediation. Because Plaintiff could not agree to such an unreasonable delay — which would defeat the very purpose of ensuring a clarified record for mediation — this motion became necessary.

CONCLUSION

Applying *Foman*, none of the recognized grounds for denial is present: the motion is timely, filed in good faith, not prejudicial, and not futile. Granting leave will conserve judicial resources, sharpen the issues for mediation, and advance efficient resolution on the merits. The Court should grant the motion to ensure the upcoming mediation is as productive as possible.

RELIEF REQUESTED

WHEREFORE, Plaintiff respectfully requests that this Court enter an Order:

(1) Grant Plaintiff leave to file the First Amended Complaint in the form attached as Exhibit A;

(2) Direct the Clerk to docket the First Amended Complaint as a separate entry; and

(3) To the extent any default deadline in Appendix B, Form II § 6(b) is deemed to have expired, permit filing of the First Amended Complaint upon the good cause and Rule 15(a)(2) showings made herein;

ATTACHMENTS

1. **[PROPOSED] ORDER**
2. **Exhibit A:** First Amended Complaint

Respectfully submitted this 28th day of August, 2025.

Michael E. Sullivan, Jr.,
Plaintiff *pro se*
3324 Peachtree Road NE, Unit 1405
Atlanta, GA 30326

(678) 372-3000
msullivanjr@gmail.com

FONT AND POINT CERTIFICATION

The undersigned Plaintiff hereby certifies that the within and foregoing **PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT** was prepared using Century Schoolbook, 13-point font in accordance with LR 5.1(C).

CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing **PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT** was served upon Defendant's counsel by depositing the same in the United States Mail, first class postage prepaid, addressed as follows:

Chadwick L. Williams, Esq.
Kabat Chapman & Ozmer LLP
171 17th Street NW, Suite 1550
Atlanta, Georgia 30363

This, the 28th day of August, 2025.

Michael E. Sullivan, Jr.,
Plaintiff *pro se*

3324 Peachtree Road NE, Unit 1405
Atlanta, GA 30326
(678) 372-3000
msullivanjr@gmail.com

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF GEORGIA
ATLANTA DIVISION

MICHAEL E. SULLIVAN, JR., Plaintiff, v. W. MICHAEL MALOOF, JR., d/b/a THE MALOOF LAW FIRM, Defendant.	Civil Action No.: **1:25-cv-02006-JPB**

[PROPOSED] ORDER

Before the Court is **PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT**. For good cause shown, Plaintiff's Motion is GRANTED.

The Clerk is DIRECTED to docket the First Amended Complaint (attached as Exhibit A to the motion) as a separate entry.

Pursuant to Rule 15(a)(3), Defendant shall answer or otherwise respond within 14 days after service of the amended pleading.

SO ORDERED this ____ day of _____, 2025.

_____
J.P. BOULEE
United States District Judge

Exhibit A

First Amended Complaint

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Defendant.

Civil Action No.:
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JURY TRIAL DEMANDED

FIRST AMENDED COMPLAINT FOR DAMAGES

COMES NOW Plaintiff Michael E. Sullivan, Jr. ("Plaintiff" or "Sullivan") and brings this Complaint against Defendant W. Michael Maloof, Jr., d/b/a The Maloof Law Firm ("Defendant") for violations of the Fair Labor Standards Act ("FLSA"), 29 U.S.C. § 201, et seq., and related state law claims for non-payment of wages earned. In support thereof, Sullivan respectfully shows the following:

PRELIMINARY STATEMENT

Plaintiff brings this action against Defendant W. Michael Maloof, Jr., his former attorney and employer, to recover wages wrongfully withheld in violation of federal and state law. Defendant leveraged confidential knowledge from a prior attorney-client relationship and Plaintiff's restrictive bond conditions to secure Plaintiff's valuable services from March 2022 through April 2024 without providing any compensation. Despite promising payment and repeatedly acknowledging the value of Plaintiff's work, Defendant refused to pay. When confronted, Defendant admitted in writing he was "guilty of

taking advantage of you" and was "just giving you stuff to add value to my cases for free." When Plaintiff sought his earned wages, Defendant engaged in a pattern of bad-faith tactics, including attempting to condition settlement on Plaintiff waiving his right to file disciplinary complaints, and later admitted he "did not follow the law." This action seeks to recover Plaintiff's earned wages, liquidated damages, and other appropriate relief for Defendant's willful violations of wage and hour laws.

JURISDICTION AND VENUE

1. This Court has original federal question jurisdiction over Plaintiff's FLSA claims pursuant to 28 U.S.C. § 1331 and 29 U.S.C. § 216(b).

2. This Court has supplemental jurisdiction over Plaintiff's state law claims pursuant to 28 U.S.C. § 1367 because they arise from the same common nucleus of operative facts and form part of the same case or controversy as the federal claims.

3. Venue is proper in the Northern District of Georgia under 28 U.S.C. § 1391(b) because Defendant resides and operates his business in this district, a substantial part of the events giving rise to the claims occurred in this district, and Defendant's principal place of business is in Decatur, Georgia, which is within the Atlanta Division of this District.

PARTIES

4. Plaintiff Michael E. Sullivan, Jr. is a citizen of the United States and a resident of the State of Georgia.

5. This Court has personal jurisdiction over Defendant because he resides and conducts business within this judicial district, and because the acts giving rise to this complaint occurred here.

6. At all relevant times, Plaintiff was an "employee" of Defendant within the meaning of the FLSA, 29 U.S.C. § 203(e)(1).

7. Defendant W. Michael Maloof, Jr. is an individual residing in Gwinnett County, Georgia.

8. Defendant is an attorney licensed to practice law in the State of Georgia.

9. Defendant conducts business as a sole proprietorship under the name The Maloof Law Firm.

10. At all relevant times, Defendant was an "employer" of Plaintiff within the meaning of the FLSA, 29 U.S.C. § 203(d).

11. Defendant acted directly or indirectly in the interest of an employer in relation to Plaintiff.

12. Defendant may be served with process at his principal place of business located at 215 N McDonough Street, Decatur, Georgia, 30030.

FLSA COVERAGE

I. Enterprise Coverage

13. On information and belief, at all relevant times, Defendant was an enterprise engaged in commerce or in the production of goods for commerce. 29 U.S.C. § 203(s)(1).

14. On information and belief, Defendant's annual gross volume of sales made or business done met or exceeded $500,000.00, exclusive of certain excise taxes.

15. On March 6, 2024, in a recorded phone conversation, Defendant stated: "we brought in 100k in January, which was without any civil shit, you know, just... So that's up there, right? Like, that's really up there. That, for me, is double... That's two times a good month. A good month is 50k." (Exhibit 54).

16. On July 24, 2023, in a recorded phone conversation, Defendant stated: "I put $50,000 away in a savings account, you know, to figure out what I want to do with it for the firm. I put, you know, there's another ... At the end of this month, if we have a decent week this week, we're going to have $200,000 in the operating account." (Exhibit 54).

17. On October 22, 2023, in a recorded phone conversation, Defendant stated: "those two cases, let's see, one hundred and three eighty one twenty and three eighty. So it's brought in half a million dollars in extra revenue in the last. And that's all my savings and extra paid for my the majority of my wedding." (Exhibit 54).

18. As one example of Defendant's business volume, Defendant handled a case that resulted in a $1.87 million settlement in or around June 2023. (Exhibit 1).

19. This settlement generated approximately $374,000 in attorney fees for Defendant.

20. On information and belief, at all relevant times, Defendant employed at least two individuals who regularly engaged in commerce or handled goods or materials that have been moved in commerce.

21. On information and belief, Defendant employs an individual whom Defendant refers to as a "law partner."

22. Defendant's business, The Maloof Law Firm, is registered as a sole proprietorship.

23. In a sole proprietorship, a true partnership is legally impossible without registration as a separate legal entity.

24. On information and belief, this individual does not possess any equity ownership interest in Defendant's sole proprietorship.

25. On information and belief, this individual receives regular compensation from Defendant.

26. On information and belief, this individual performs his duties under Defendant's direction and control.

27. As a matter of economic reality, the individual referred to as a "law partner" is an employee under the FLSA.

28. This individual, together with Plaintiff, satisfies the FLSA's requirement of having at least two employees for enterprise coverage from the outset of Plaintiff's employment.

29. On information and belief, from approximately August 2022 through August 2024, Defendant employed at least one other employee in addition to Plaintiff and the individual referred to as a "law partner."

30. On information and belief, at certain times during this period, Defendant employed two other employees in addition to Plaintiff and the individual referred to as a "law partner."

31. The group of individuals satisfying the two-employee minimum at all relevant times included Plaintiff and these other employees.

32. The work of these employees included processing client payments through interstate credit card transactions.

33. The work of these employees included communicating with out-of-state clients, courts, and counsel via telephone and email.

34. The work of these employees included utilizing office equipment, supplies, and software that were moved in or produced for interstate commerce.

35. These additional employees regularly engaged in interstate commerce and/or handled goods or materials that have moved in interstate commerce.

II. Individual Coverage

36. Alternatively, at all relevant times, Plaintiff was individually engaged in commerce or in the production of goods for commerce. 29 U.S.C. §§ 206–207.

37. Plaintiff's engagement in interstate commerce was regular and recurrent. On a weekly basis, his work activities for Defendant involved the direct use of the instrumentalities of interstate commerce, including but not limited to the following:

38. As part of his job duties, Plaintiff utilized Westlaw, a subscription-based legal research platform operating across state lines.

39. As part of his job duties, Plaintiff utilized cloud storage platforms, including Dropbox and Google Drive, for file sharing and case management.

40. As part of his job duties, Plaintiff was assigned tasks in MyCase, a cloud-based practice management software operating across state lines.

41. As part of his job duties, Plaintiff used the Odyssey e-filing system for Georgia courts, an electronic filing platform that relies on interstate networks.

42. As part of his job duties, Plaintiff engaged in email communications that crossed state lines with clients, opposing counsel, and courts.

43. As part of his job duties, Plaintiff engaged in telephone communications that crossed state lines with clients, opposing counsel, and courts.

44. As part of his job duties, Plaintiff communicated with out-of-state clients and entities.

45. As part of his job duties, Plaintiff conducted financial transactions through interstate banking and payment systems.

46. These transactions included procuring and processing airline tickets via interstate banking systems.

47. These transactions included processing client payments through electronic payment systems, including credit card transactions, operating across state lines.

48. These transactions included creating, sending, and tracking electronic invoices through accounting software that transmits data across interstate servers.

49. These transactions included authorizing and processing payments to legal service vendors.

50. As part of his job duties, Plaintiff handled and processed information through interstate commerce channels.

51. This work included subpoenaing phone records from interstate telecommunication carriers.

52. This work included using email services that transmit data across state lines through interstate servers and networks.

53. This work included using telephone services that operate on national networks utilizing interstate infrastructure.

54. Plaintiff's regular and recurrent engagement in these activities was an integral and indispensable part of his job duties, thereby establishing individual coverage under the FLSA.

STATEMENT OF FACTS

55. The following Statement of Facts describes Defendant's failure to pay wages and his subsequent, independent wrongful acts committed during pre-suit dispute resolution. Pursuant to Federal Rule of Evidence 408(b), these communications are not offered to prove the validity or amount of the underlying wage dispute. Instead, they are included for permissible, alternative purposes as they constitute the operative facts of Defendant's unlawful retaliation, establish his willful state of mind for FLSA purposes, demonstrate bad faith supporting claims for litigation expenses, and form the factual basis for separate state law torts.

III. Initial Attorney-Client Relationship and Defendant's Unique Knowledge

56. In 2014, Defendant W. Michael Maloof, Jr. ("Maloof") established an attorney-client relationship with Plaintiff Michael E. Sullivan, Jr. ("Sullivan") regarding a criminal matter.

57. Through this relationship, Defendant gained access to Plaintiff's confidential personal and financial information.

58. On October 15, 2015, Defendant wrote in his case notes regarding Plaintiff's matter: "This could be a big money case."

59. Through the representation, Defendant became aware of Plaintiff's educational qualifications.

60. On November 2, 2015, Defendant wrote in his case notes that Plaintiff "did undergraduate work at Emory University where he has two undergraduate degrees in economics."

61. On November 2, 2015, Defendant also wrote in his case notes that Plaintiff "has two Masters degrees from Georgia State University."

62. Through the representation, Defendant became aware of Plaintiff's prior earning capacity.

63. On November 2, 2015, Defendant wrote in his case notes: "At the time of his arrest he was making about $120,000 a year plus bonuses."

64. Through the representation, Defendant became aware of Plaintiff's work ethic.

65. On November 2, 2015, Defendant wrote in his case notes that Plaintiff "was working an average of about 100 hours a week prior to the events complained of in this case."

66. On September 30, 2016, the formal attorney-client relationship between Defendant and Plaintiff terminated.

67. Defendant retained the confidential information he had gained during the representation, including his knowledge of Plaintiff's qualifications and financial background.

68. Defendant also possessed the unique, confidential knowledge that from approximately late 2015 through early 2022, Plaintiff had been unable to secure employment due to the nature of the pending criminal charges.

69. As an attorney practicing in the same legal community, Defendant was also aware that during this period of unemployment, Plaintiff had retained and was paying for high-priced legal counsel.

70. When Defendant re-initiated contact in January 2022, he observed that despite the dual financial pressures of protracted unemployment and significant legal fees, Plaintiff was not destitute.

71. On information and belief, Defendant leveraged this unique combination of confidential knowledge—Plaintiff's high earning potential from

the past and his apparent financial solvency in the present—to form a calculated assumption that Plaintiff possessed sufficient personal wealth that he would not be dependent on a paycheck for his livelihood.

72. On information and belief, this assumption formed the basis of Defendant's subsequent actions, as Defendant believed he could secure Plaintiff's valuable services without providing compensation, knowing Plaintiff would not be forced by financial desperation to demand it.

73. Defendant later admitted to making this precise assumption as the justification for his non-payment, stating in an email: "I assumed Mike has plenty of money and he likes doing this stuff so I don't need to pay him. It is like a hobby and he is a rich white guy." (Exhibit 2).

IV. Employment Relationship Formation (2022)

74. Prior to January 2022, Plaintiff was subject to restrictive bond conditions, which confined him to house arrest and required him to obtain prior court approval for any departures from his home.

75. Defendant knew Plaintiff was subject to these bond conditions.

76. On January 20, 2022, Defendant texted Plaintiff, "I had an idea that could maybe get you out of this solitary confinement." (Exhibit 3).

77. In response, Plaintiff jokingly texted a suggestion of an "unpaid internship at my fav place in Decatur? ;)" (Exhibit 3). This suggestion was a sarcastic reference to the fact that his restrictive bond conditions already

permitted him to leave his home for meetings with his legal counsel, and Defendant was his former attorney.

78. Defendant rejected the suggestion of an "unpaid internship." Instead, on January 20, 2022, Defendant texted Plaintiff that the proposed work arrangement would be "Paid but underpaid." (Exhibit 3).

79. Plaintiff informed his legal counsel of the employment offer, and his counsel subsequently requested that Defendant provide a formal offer letter for the purpose of supporting a motion to modify Plaintiff's bond conditions.

80. At Defendant's request, Plaintiff prepared a draft of this letter.

81. In the draft letter, Plaintiff included a placeholder annual salary of $14,500. This figure was not a negotiated salary but a good-faith calculation based on the federal minimum wage ($7.25 per hour multiplied by 2,000 annual hours), inserted solely to provide a necessary baseline for the bond motion. (Exhibit 4).

82. On February 4, 2022, Plaintiff emailed the draft letter to Defendant. In the transmittal email, Plaintiff explicitly communicated his uneasiness with drafting his own offer and put Defendant on notice that its terms were merely assumptions requiring Defendant's final input. Plaintiff wrote: "I think it is what he [Plaintiff's counsel] is looking for, but also was not a party to that discussion ... I made numerous assumptions that are explicitly

your call to make. Candidly, I feel as though I'm overstepping here ... I'm happy to assist with amending as you see fit, e.g. if you are driving and want to dictate amendments, that works for me." (Exhibit 4).

83. Plaintiff reasonably expected this placeholder salary and other assumptions would be finalized after a good-faith discussion with Defendant to determine the actual "underpaid" compensation. Defendant never initiated this discussion.

84. On February 15, 2022, Defendant emailed Plaintiff with the instruction to "Keep track of any hours you do some work." (Exhibit 5).

85. On February 18, 2022, Plaintiff's counsel filed a Motion to Modify Bond Conditions in Plaintiff's criminal case, stating, "Mr. Sullivan has obtained an offer of employment from a local law firm."

86. The Motion attached the draft letter prepared by Plaintiff as evidence of the employment offer.

87. On February 22, 2022, the Court held a hearing on the Motion to Modify Bond Conditions.

88. Defendant appeared virtually at this hearing.

89. During the hearing, Plaintiff's counsel stated to the Court, "And that's why Mr. Maloof is here. Mr. Maloof also provided a letter in writing stating that he would be Mr. Sullivan's employer."

90. Plaintiff's counsel further represented that Defendant "is aware of this case and his bond conditions and he said Mr. Sullivan would be coming to work in his office during the week."

91. Defendant, having previously served as Plaintiff's counsel of record in the same matter, was uniquely aware of the case history and the significance of these representations to the Court.

92. Defendant was present for these representations and did not object to or correct them.

93. Following these representations, the Court entered an Order Modifying Bond Conditions, permitting Plaintiff to leave his home for the purpose of working at Defendant's law firm.

94. More than a year later, Defendant made statements about the formation of the employment relationship that contradicted his initial "Paid but underpaid" promise.

95. On November 27, 2023, Defendant stated in an email, "I thought this was an unpaid internship." (Exhibit 6).

96. On June 10, 2024, Defendant stated in an email, "I offered a paid internship and you said you wouldn't take money." (Exhibit 7).

97. On August 15, 2023, in a recorded phone conversation, Defendant stated: "I have hired you, you know, as a law clerk, you know, unpaid law clerk." (Exhibit 54).

98. On that same date, Defendant also stated in an email, "I offered payment of 10 dollars an hour at the outset." (Exhibit 7).

V. Initial Employment Period (March - August 2022)

99. Plaintiff commenced employment at The Maloof Law Firm on or about March 9, 2022.

100. On Plaintiff's first day of work, Defendant informed Plaintiff via email that his legal assistant was unexpectedly unavailable, stating, "My legal assistant is out with some kind of medical issue they are trying to figure out. It is a little scary." (Exhibit 8).

101. The legal assistant resigned after that day, leaving the position vacant.

102. Over two years later, on June 10, 2024, Defendant claimed in an email that he had known his prior legal assistant was leaving as early as January 2022. (Exhibit 7).

103. Defendant made this claim only after Plaintiff had demanded his unpaid wages.

104. On March 10, 2022, Plaintiff created a professional email address, msullivanjrlaw@gmail.com, and the email signature for this address identified Plaintiff as "Law Clerk | The Maloof Law Firm." (Exhibit 9).

105. On that same day, Plaintiff requested access to the firm's Westlaw account for legal research.

106. Between approximately March 24, 2022, and April 1, 2022, Plaintiff's work on the Cooley v. Ashita, et al. case included conducting legal research, preparing exhibits for a court filing, and drafting portions of a response to a motion for summary judgment.

107. On April 1, 2022, Defendant's co-counsel, Andrew Lynch, emailed Plaintiff regarding his work on the Cooley case, stating, "You did good. Don't sweat the details. You were a real help." (Exhibit 10).

108. In or around June 2023, the Cooley case settled for $1.87 million. (Exhibit 1).

109. Upon information and belief, this settlement generated approximately $374,000 in attorney's fees for Defendant's law firm, based on a 40% contingency fee shared between two attorneys.

110. Plaintiff received no compensation from Defendant for his work on the Cooley case.

111. On May 18, 2022, after performing work for Defendant for approximately 70 days without receiving any wages, Plaintiff emailed Defendant information from the Robert Half 2022 Legal Salary Guide identifying market salary rates for legal support staff. (Exhibit 11).

112. On August 8, 2022, Defendant sent Plaintiff a letter stating, "Your actions here have been invaluable and are altruistic to me and my firm." (Exhibit 12).

113. Defendant had not paid Plaintiff any wages at the time he described Plaintiff's actions as "invaluable."

114. On August 18, 2023, in a recorded phone conversation, Defendant stated: "I got a pretty good law clerk for free." (Exhibit 54).

115. Over two years later, on June 10, 2024, Defendant stated in an email that Plaintiff "missed a lot of days." (Exhibit 7).

116. On August 14, 2022, after working for Defendant for 159 days without pay, Plaintiff emailed Defendant a notice of departure: "W be out of the office for an indeterminate period starting Monday. I need to focus on other stuff, thanks." (Exhibit 13).

117. In response, Defendant sent Plaintiff a text message urging him not to leave.

118. On August 16, 2022, less than 48 hours after receiving Plaintiff's notice of departure, Defendant hired Sofia Barnett to work for the firm. (Exhibit 14).

119. Upon information and belief, Defendant hired Ms. Barnett as a paid employee at a starting salary of approximately $60,000 per year.

120. Prior to Plaintiff's departure, a paralegal working in a nearby office had recommended her daughter, Sofia Barnett, to Defendant for the vacant position.

121. For approximately 5.2 months, while Plaintiff worked for Defendant without pay, Defendant did not hire Ms. Barnett or any other employee to fill the vacant position.

122. Throughout the initial 159-day period of his employment, from March 9, 2022, through August 14, 2022, Plaintiff received no compensation from Defendant.

VI. Defendant's False "Ghosting" Narrative and Immediate Retaliation

123. Years later, after Plaintiff demanded his earned wages, Defendant fabricated a narrative that Plaintiff had "vanished" or "ghosted" the firm immediately after giving his notice of departure on August 14, 2022.

124. On January 10, 2023, in a recorded phone conversation, Defendant stated: "I will lie. Um, that's a character defect." (Exhibit 54).

125. On April 24, 2024, Defendant emailed Plaintiff, stating, "You vanished a few times in there for a bit..." (Exhibit 2).

126. On June 10, 2024, Defendant emailed Plaintiff, stating, "The hire was made when you ghosted the firm." (Exhibit 7).

127. This post-hoc narrative, advanced only after Plaintiff demanded his earned wages, is contradicted by Defendant's own contemporaneous communications and actions.

128. In stark contrast to Defendant's claims, Plaintiff continued to communicate with Defendant and provide services and financial assistance to Defendant and his firm immediately following his departure.

129. On August 22, 2022, eight days after Plaintiff ceased working due to non-payment, Defendant requested that Plaintiff use his personal Delta SkyMiles to book first-class flights for Defendant and his fiancée. (Exhibit 15).

130. On September 16, 2022, Plaintiff fulfilled this request, expending 118,000 of his personal miles for Defendant's benefit. (Exhibit 16).

131. Defendant made this request despite possessing a sufficient SkyMiles balance (53,337) of his own at the time, as evidenced by a separate flight confirmation showing his account balance (SkyMiles # 9349039553). (Exhibit 17).

132. On August 18, 2022, Plaintiff informed Defendant via email that he had personally paid a firm expense, a regular occurrence, "I was able to negotiate this down to $40.28 from $123.33 and sent a check." (Exhibit 18).

133. Defendant replied, "Thank you Mike. Give me a call tomorrow. I miss having you around." (Exhibit 19).

134. On August 22, 2022, Plaintiff sought to review the response to a third-party subpoena response he drafted and served, inquiring, "May I drop in and look at the response? I'm curious if business records contradict the victim's testimony." (Exhibit 20).

135. Defendant replied via text, "sure but not today," and never subsequently provided Plaintiff with access to the requested records, was unable to produce them in advance of Ford's trial, requiring Plaintiff to subpoena the records again. (Exhibits 20, 21, 22).

136. Defendant's refusal to facilitate Plaintiff's ongoing work effectively terminated the arrangement that served as the sole basis for Plaintiff's release from house arrest.

137. By creating this impasse, Defendant's retaliation for Plaintiff quitting over non-payment was to revoke the primary, non-monetary benefit of the employment relationship: Plaintiff's court-sanctioned liberty.

138. Despite being cut off from his work, Plaintiff continued to be available, corresponding with a paralegal in the Henry County District Attorney's Office regarding the Ford case as late as September 12, 2022. (Exhibit 22).

VII. Continued Work and Case Developments (2023)

139. In early 2023, the State of Georgia offered Plaintiff a plea deal in his criminal matter that would have resulted in a felony conviction.

140. Plaintiff immediately rejected the offer.

141. On March 7, 2023, Plaintiff emailed his attorneys to confirm his rejection, stating: "I have received the State's offer to plea bargain, thoroughly

considered it, and desire to promptly inform the State of my decision and proceed to trial." (Exhibit 23).

142. That same evening, Plaintiff received a telephone call from Defendant regarding the State's plea offer.

143. At the time of this call, Defendant had not served as Plaintiff's attorney since 2016.

144. This call occurred seven months after Plaintiff had informed Defendant via an August 17, 2022 email that he would never accept such a plea deal, "even if Alford, 1-year probation, and time served." (Exhibit 24).

145. The State's plea offer was remarkably similar to the hypothetical terms Plaintiff had expressly rejected, as it included both probation and time served.

146. Defendant initiated the March 7, 2023 call at the request of Plaintiff's counsel to discuss the plea offer.

147. Despite his knowledge of Plaintiff's unequivocal position, Defendant advised Plaintiff to accept the plea.

148. Defendant later admitted in a June 10, 2024 email that at the time he gave this advice, he "did not review the discovery" and was only "told bits and pieces." (Exhibit 7).

149. Plaintiff's trial was specially set for six days later, on March 13, 2023. Plaintiff appeared in court ready for voir dire, but instead the State of Georgia filed an Order for Nolle Prosequi, dismissing all charges against him.

150. The State's order cited "severe evidentiary issues," the "loss of one of the victim's recorded statements," and insufficient evidence as the basis for the dismissal.

151. Upon learning of the dismissal, Defendant sent Plaintiff a text message on March 13, 2023, stating, "Really you were right." (Exhibit 25).

152. In a subsequent text message that day, Defendant stated, "Unbelievable I guess I was wrong on taking the deal." (Exhibit 25).

153. In his June 10, 2024 email, Defendant later claimed that Plaintiff told him afterward that "You told me given what I knew at the time it was the right recommendation after it was over." (Exhibit 7).

154. This claim is directly contradicted by Defendant's own contemporaneous text messages from March 13, 2023.

155. On June 20, 2023, months after Plaintiff had formally departed, Defendant assigned Plaintiff new work investigating a new premises liability case, stating: "Mike you are the guru at investigating all data. I want you to investigate the actual security measures used by the apartment complex." (Exhibit 26).

156. This new case was a partnership with attorney Troy Hendrick. On July 19, 2023, Mr. Hendrick, having observed Plaintiff's work, sent an email to both Defendant and Plaintiff stating: "I'm unaware of the pay structure between Mike S and MMJ. But I suggest that Mike S charge the case on an hourly basis plus expenses, and invoice HandH Law Firm." (Exhibit 27).

157. Following Mr. Hendrick's suggestion, Defendant instructed Plaintiff not to report his hours and reiterated his appreciation for Plaintiff's uncompensated work in a July 27, 2023 email: "I love having a brilliant law clerk that works for nachos and refuses to accept monetary payment." (Exhibit 28).

158. On August 18, 2023, in a recorded phone conversation, stated "I got, I got a pretty good law clerk for free." (Exhibit 54).

159. On information and belief, on March 13, 2025, Defendant subsequently filed a lawsuit in this potentially lucrative premises liability matter for which Plaintiff had performed the initial, uncompensated investigation.

160. On November 16, 2023, Defendant emailed Plaintiff proposing an alternative to direct payment: "I would propose a hefty technology and legal drafting fee for the proceeds to come from any settlement." (Exhibit 29).

161. On November 19, 2023, Plaintiff emailed Defendant expressing his frustration regarding his uncompensated work on the Banda/Fuster case. (Exhibit 30).

162. On December 5, 2023, Plaintiff emailed Defendant stating: "I would like you to surrender your bar license so you cannot do this to anyone ever again." (Exhibit 31).

163. On December 6, 2023, Defendant made a settlement offer to Plaintiff via email.

164. The offer was explicitly conditioned on Plaintiff forfeiting his right to file a disciplinary grievance with the State Bar of Georgia.

165. Defendant wrote that the settlement release would "prevent all future claims and any grievances filed with the bar." (Exhibit 32).

166. On December 8, 2023, in an attempt to obscure his FLSA obligations, Defendant sent another email to Plaintiff, reframing the payment not as wages but as a "refund" and payment for "independent contractor" work: "a refund for 15K may be in order... and then I think [a sum certain] for work performed on Fuster and Banda as an independent contractor." (Exhibit 33).

167. On December 8, 2023, in a recorded phone conversation, Defendant stated: "Okay, but if I wrote you a refund, is that you pay taxes on a refund? A refund. You paid me, remember, you paid me $15,000 years ago on your case ... Because that way, you know, that was not, that was like buying a

service, right? You've gotten, you've refunded your service, right? ... and then I get to write off the $15,000 and then I get to pay, it's like, oh, I had to refund money. So, it's completely deductible and you get $15,000 back that you paid me that you'd already paid taxes on, right? And so, it's a refund to you and then you don't have to pay back." (Exhibit 54).

168. On that same day, Plaintiff notified Defendant via email that conditioning a settlement on preventing a bar grievance violated Georgia Rule of Professional Conduct 9.2. (Exhibit 34).

169. Also on December 8, 2023, Defendant emailed Plaintiff a promise regarding future work, stating: "Moving forward we can just work out an hourly or flat rate for projects." (Exhibit 33).

170. On December 15, 2023, Defendant sent an email to Plaintiff stating: "This is where I am guilty of taking advantage of you. I was just giving you stuff to add value to my cases for free and not billing the client for it." (Exhibit 35).

171. On October 22, 2023, in a recorded phone conversation, Defendant stated: "I don't go to other people and ask them to work for [expletive] free, except for you, for some [expletive] up reason. That's wrong." (Exhibit 54).

172. On December 18, 2023, three days after admitting he was "guilty of taking advantage," Defendant emailed Plaintiff again, stating: "I also want you to know I didn't mean to take advantage of you." (Exhibit 36).

173. On April 24, 2024, Defendant sent an email to Plaintiff placing a value on Plaintiff's work on the Sutton case: "I figured [a specific sum] more would be owed for the additional work you did this year" [for Sutton]. (Exhibit 2).

VIII. Sutton Case Work and FLSA Claims (2024)

174. On February 26, 2024, Defendant requested Plaintiff's assistance with the Sutton case via text message, stating: "Let me get Liban on it just to teach him but pay you as well." (Exhibit 37).

175. Between February 26, 2024, and April 4, 2024, Plaintiff performed approximately 50 documented hours of work on the State v. Sutton case.

176. This work included analyzing call detail records (CDRs) and preparing a report.

177. At the time Plaintiff began this work, Defendant had represented Mr. Sutton for 1,303 days.

178. Plaintiff drafted and served the subpoenas for the evidentiary records just 25 days before the scheduled trial.

179. On February 28, 2024, Plaintiff filed Requests to Charge in the Sutton case. (Exhibit 38).

180. On the same day, Plaintiff served subpoenas for phone records via facsimile from Defendant's office. The notice of this service was subsequently filed with the court on March 21, 2024. (Exhibit 39).